BRENDAN NGEHSI NEWANFORBI
Plaintiff, In Propria Persona
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UNITED STATES DISTRICT COURT

EASTERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. **UNITED PARCEL SERVICE, INC.; and DOES 1 through 10, inclusive,** Defendants.	Case No. 1:26-at-03195 **PLAINTIFF'S NOTICE OF ERRATA CORRECTING MISNOMER, AND REQUEST FOR INTRADISTRICT REASSIGNMENT TO THE SACRAMENTO DIVISION** (E.D. Cal. L.R. 120(d), (f); 28 U.S.C. 1441(a)) Removed: August 20, 2026 from the Superior Court of the State of California for the County of San Joaquin, Case No. STK-CV-UWT-2026-0009113 *[No hearing requested]*

TO THE HONORABLE COURT, AND TO DEFENDANT UNITED PARCEL SERVICE, INC. AND ITS ATTORNEYS OF RECORD:

Plaintiff BRENDAN NGEHSI NEWANFORBI, appearing in propria persona, respectfully submits this notice for two limited purposes: to correct the spelling of his name on the caption of this removed action, and to request that the action be reassigned to the Sacramento Division of this Court, which is the division that embraces the county in which the action was pending. Both corrections are administrative, neither requires a hearing, and both are better made

now, before a district judge or magistrate judge is assigned and before any scheduling order issues.

I.

THE CAPTION MISSTATES PLAINTIFF'S NAME

1. Plaintiff's true and correct name is BRENDAN NGEHSI NEWANFORBI. That is the name under which this action was filed in the Superior Court of the State of California for the County of San Joaquin on July 15, 2026, Case No. STK-CV-UWT-2026-0009113, and it is the name that appears on the Summons, on the Complaint, and on every paper served on Defendant in that action.

2. Defendant's Notice of Removal spells Plaintiff's surname "NGWANFORBI" in its caption and repeats that spelling at paragraph 4. The same removal package spells the name correctly elsewhere: both the Declaration of Ashley Felsing (Doc. 1-2) and the Notice of Interested Parties and Corporate Disclosure Statement (Doc. 1-3) caption this action "BRENDAN NGEHSI NEWANFORBI."

3. Paragraph 5(a) of the Notice of Interested Parties goes further and describes Plaintiff as "Brendan Ngehsi Newanforbi, also known as Brendan Ngwanforbi." That is not correct. "Ngwanforbi" is a typographical error, not an alias. Plaintiff has not appeared in this action, or in the state-court action from which it was removed, under any name other than BRENDAN NGEHSI NEWANFORBI, and respectfully asks that the docket in this Court not carry an alias that does not exist.

4. On removal, this Court takes the action as it stood in the state court, and the caption is the caption of the state-court action. The docket in this Court should therefore identify Plaintiff as BRENDAN NGEHSI NEWANFORBI. Plaintiff raises the point now so that the misspelling does

not carry forward into this Court's orders, its records, and the public docket, and so that filings in this action can be matched to the state-court record from which they came.

II.

THIS ACTION BELONGS IN THE SACRAMENTO DIVISION

5. Defendant removed this action on August 20, 2026. The Notice of Removal was filed under Case No. 1:26-at-03195. The "1:" prefix designates the Fresno Division of this Court.

6. The action arose in, and was pending in, San Joaquin County. A defendant may remove only to "the district court of the United States for the district and division embracing the place where such action is pending." 28 U.S.C. 1441(a).

7. Under this Court's Local Rule 120(d), civil actions arising in San Joaquin County are to be commenced in the United States District Court sitting in Sacramento. San Joaquin County is not among the counties assigned to the Fresno Division. The division embracing the place where this action was pending is therefore Sacramento.

8. Defendant does not appear to contend otherwise. Paragraph 37 of the Notice of Removal states that "Plaintiff's Complaint was filed in the Superior Court of the County of San Joaquin" and that "This Court is part of the division in which the Superior Court action is pending," citing 28 U.S.C. 84(b) and 1446(a). That is the correct standard. Applying it to San Joaquin County yields the Sacramento Division. This request asks for nothing more than the assignment Defendant's own papers describe.

9. Local Rule 120(f) provides for transfer where an action has not been commenced in the proper court in accordance with Rule 120, on the motion of any party, on stipulation, or for other good cause. Good cause is plain here and the correction costs the Court and the parties almost

nothing: no district judge or magistrate judge has been assigned, no scheduling order has issued, no motion has been noticed, and nothing has been briefed. To the extent the Court prefers that this request be presented as a noticed motion or by stipulation, Plaintiff will promptly file one, and will first ask Defendant whether it will stipulate.

10. Reassignment also serves the convenience of the parties and of any witnesses. This action arose in San Joaquin County: the Complaint was filed there, the Superior Court in which the action was pending sits there, and the state-court record now before this Court originates there. Sacramento County adjoins San Joaquin County; Fresno lies roughly one hundred thirty miles to the south. Defendant identifies no connection between this action and any county assigned to the Fresno Division, and none appears on the face of its removal papers.

III.

RELIEF REQUESTED

11. Plaintiff respectfully requests that the Court:

(a) direct the Clerk of Court to correct the caption of this action so that Plaintiff is named as BRENDAN NGEHSI NEWANFORBI;

(b) reassign this action to the Sacramento Division of this Court under Local Rule 120(f), and direct that it be renumbered accordingly; and

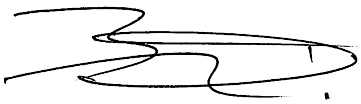
(c) grant such other and further relief as the Court deems just and proper.

12. RESERVATION OF RIGHTS. This notice is submitted for the two limited purposes stated above. Nothing in it is, or should be construed as, a waiver of any right, objection, or defense available to Plaintiff. Plaintiff expressly reserves all objections to this Court's

subject-matter jurisdiction, which under 28 U.S.C. 1447(c) may be raised at any time before final judgment, and takes no position here on the responsive pleading that Defendant must file under Federal Rule of Civil Procedure 81(c)(2).

Dated: August 21, 2026

Respectfully submitted,



BRENDAN NGEHSI NEWANFORBI

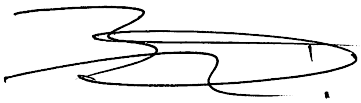
Plaintiff, In Propria Persona

CERTIFICATE OF SERVICE

I am the Plaintiff in this action and am over the age of eighteen years. On August 21, 2026, I served the foregoing NOTICE OF ERRATA AND REQUEST FOR INTRADISTRICT REASSIGNMENT by placing a true and correct copy in a sealed envelope, with first-class postage fully prepaid, and depositing it with the United States Postal Service at Milpitas, California, addressed as follows:

Vanessa W. Mott, Esq. (SBN 184606)
Alyssa R. Daskas, Esq. (SBN 359379)
MARTENSON, HASBROUCK & SIMON LLP
600 Anton Boulevard, Suite 1250
Costa Mesa, CA 92626
vmott@martensonlaw.com
adaskas@martensonlaw.com
Attorneys for Defendant United Parcel Service, Inc.

I declare under penalty of perjury under the laws of the United States of America that the foregoing is true and correct. Executed on August 21, 2026, at Milpitas, California.



BRENDAN NGEHSI NEWANFORBI
Plaintiff, In Propria Persona